

4.

CASE #	CASE NAME	HEARING NAME
CVPS2302950	REAL ADVANTAGE TITLE INSURANCE COMPANY VS BARKER	MOTION FOR ORDER TO SHOW CAUSE

Tentative Ruling:

“The power to punish for contempt or to use the contempt powers to obtain compliance with a court order is conferred on the court by statute.” (*Conn v. Superior Court* (1987) 196 Cal.App.3d 774, 784.) “It is well settled that the court has inherent power to enforce compliance with its lawful order through contempt.” (*In re Nolan W.* (2009) 45 Cal.4th 1217, 1230.) “A contempt proceeding is commenced by the filing of an affidavit and a request for an order to show cause.” (*Cedars-Sinai Imaging Medical Group v. Superior Court* (2000) 83 Cal.App.4th 1281, 1286; CCP §1211(a)-(b).) CCP § 1211(a) provides in relevant part that, “[w]hen the contempt is not committed in the immediate view and presence of the court ... an affidavit shall be presented to the court or judge of the facts constituting the contempt.”

The present matter involves an indirect contempt proceeding in which the Defendant must demonstrate: (1) the rendition of a valid order; (2) the Defendants’ actual knowledge of the order; (3) Defendants’ ability to comply with the order; and (4) Defendants’ willful disobedience of the order. (See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) (“Weil & Brown”), §§ 9:711-12; *Conn v. Superior Court* (1987) 196 Cal.App.3d 774, 784.)

In order to initiate contempt proceedings, the charging party must file an affidavit setting forth facts of the charging elements. (Weil & Brown, *supra*, § 9:713; *Reliable Enterprises, Inc. v. Superior Court* (1984) 158 Cal.App.3d 604, 616.) If the court is satisfied that there are sufficient grounds, it will issue an OSC re Contempt, setting the date and time for a hearing. (CCP § 1212.) Importantly, a respondent/citee in a contempt proceeding must be formally notified and of the contempt charge and the time and place of the hearing; thus, the OSC and affidavit must be served “*in a manner authorized for service of summons*.” (Weil & Brown, *supra*, § 9:716 [emphasis in the original]; see also *Cedars-Sinai Imaging Medical Group v. Superior Court* (2000) 83 Cal.App.4th 1281, 1286–8 [“Unless the citee has concealed himself from the court, he must be personally served with the affidavit and the order to show cause; *otherwise, the court lacks jurisdiction to proceed*”] [emphasis in the original].)

What Defendant is actually seeking in this motion is an evidentiary/issue sanctions, or in the alternative, to order compliance with the court’s prior discovery orders regarding (1) production of records and (2) compel the deposition of Rich Macaluso. As to the latter, it is moot in light of the other motions on this morning grant the motion.

As for the production of records, Plaintiff provides no evidence in opposition that they complied with the order. Accordingly, to the extent that Plaintiff has not complied

with the Court's previous order, the Court orders production forthwith. As for issue/evidentiary sanctions, that issue is premature at this point.

The Court denies the request for monetary sanctions without prejudice as Defendant brought a confusing motion as to discovery/contempt.

Denied.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2405394	SANCHEZ VS FORD MOTOR COMPANY	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling:

Moving party: Defendants Ford Motor Company and Palm Springs Motors Inc. (sued as Palm Springs Ford)
Responding party: Plaintiff Zorina Sanchez

This is a lemon law case. On 2/14/20, Plaintiff Zorina Sanchez ("Plaintiff") purchased a used, certified pre-owned ("CPO") 2019 Ford Escape manufactured by Defendant Ford Motor Company ("Defendant") and sold by Palm Springs Motors, Inc. (sued as Palm Springs Ford). The vehicle had about 27,601 miles. The complaint alleges a 3/23/20 transaction date, but the sales contract and Plaintiff's deposition identify 2/14/20. Plaintiff acknowledged that the Vehicle was used and testified that she was told it came with a "used car warranty." (UF no. 3.)

The terms of the CPO Warranty have not been described in detail; but Plaintiff alleges that she entered into a "warranty contract" with Defendant and that the contract included "the bumper-bumper warranty, powertrain warranty, [and] emission warranty." (Compl., ¶¶ 7-8.)

The complaint, filed 8/30/24, asserts: (1) Civ. Code §1793.2(d); (2) Civ. Code §1793.2(b); (3) Civ. Code §1793.2(a)(3); (4) breach of implied warranty of merchantability; and (5) negligent repair (against Palm Springs Ford).

Defendants now move for summary judgment or, alternatively, summary adjudication of 9 issues. Issues nos. 1 through 4 contend that, because the vehicle was purchased used, Plaintiff's Song-Beverly claims fail under *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189. Issues nos. 5 through 8 assert additional defects in the 2nd, 3rd, and 4th causes of action; namely, that no repair exceeded 30 days, that Plaintiff lacks evidence that Defendant failed to provide sufficient parts, and that the implied warranty claim is time barred and unsupported by evidence of breach or damages. Issue no. 9 argues that the negligent-repair claim is barred by the economic loss rule.

Plaintiff opposes, arguing that triable issues exist concerning the CPO warranty issued, the scope and administration of warranty repairs, timely